

compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

8. 9:00 AM CASE NUMBER: C23-02746
CASE NAME: RALPH REYES VS. NISSAN NORTH AMERICA, INC.
***HEARING ON MOTION IN RE: ATTORNEYS' FEES AND COSTS**
FILED BY: REYES, RALPH LOUIE
TENTATIVE RULING:

Plaintiff Ralph Reyes sued Defendant Nissan North America, Inc. under the Song-Beverly Act. After almost two years of litigation, the case resolved, with the Defendant agreeing to designate Plaintiff as the prevailing party and to pay the Plaintiff attorneys' fees and costs. Plaintiff now seeks a judicial award of attorneys' fees as costs, after the parties were unable to agree on an amount. The Court received no timely opposition.

Plaintiff has submitted a declaration outlining the work performed and the qualifications of the individuals performing the work, billing statements identified the hours expended, receipts or notations of costs expended, and several prior cases justifying the attorney fee rates requested. Plaintiff seeks his lodestar with a 0.2% multiplier.

The lodestar is \$41,318.50, which comes to \$49,582.20 after the multiplier. Plaintiff also seek \$6,283.30 costs. (There appears to be a mistake in the motion, at one point stating the amount as \$5,111.12. The Court believes the amount sought is the former.) The total amount requested is therefore \$55,865.50.

California Civil Code § 1717(a) authorizes a "prevailing party" to recover an award of reasonable attorney's fees in "any action on a contract" where the contract specifically provides for recovery of attorney's fees. (Cal. Civ. Code § 1717.)

Further, Section 1032(b) states that "a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Cal. Code Civ. Proc. § 1032(b).) California Code of Civil Procedure section 1033.5(a)(10) defines "costs" as attorney's fees when authorized by contract or statute. (Cal. Code Civ. Proc. § 1033.5(a)(10).)

Reasonable attorney's fees in cases, like this one, are generally determined by the "lodestar method." The calculation of hourly rates times the hours expended on the litigation is referred to as the "lodestar" amount, which may be enhanced under certain circumstances. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The Court has reviewed the rates, hours, multiplier, and costs and finds all to be reasonable. Plaintiffs' motion is therefore **granted**.

9. 9:00 AM CASE NUMBER: C23-02936
CASE NAME: SOLARENEWAL LLC VS. PRISTINE SUN FUND 5 LLC
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: RADIAN GENERATION LLC
TENTATIVE RULING: